Strata repairs and maintenance

nsw.gov.au/housing-and-construction/strata/living/repairs-and-maintenancePrinted: 24 January 2022

Understand how to get repairs and maintenance done, who pays for it, and what to do if there's a problem.

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Key information

- The owners corporation is responsible for maintenance and repair of common property – each owner repairs anything in their own property.
- If you are unsure who should make a repair, check your strata plan and by-laws (or ask your strata committee or strata manager).
- Owners should ask their strata manager or strata committee for common property repairs. Renters should ask their landlord.
- The owners corporation plans and pays for major repairs to common property (this includes fixing defects).

Did you know?

Who is responsible for strata repairs?

Usually, the owners corporation repairs common property and each owner repairs anything within their property.

To check who should make a repair, look at your strata plan and by-laws. To get a copy of these, contact your strata committee secretary or strata manager.

In most cases, this is who's responsible for common repairs:

Owners corporation

Roofs and gutters
Ceiling, unless the problem is with changes the owner has made
Boundary walls
Carpets in common property (such as hallways)
Lights in common property
Any lights recessed into the ceiling
Garage doors
Balconies and balcony doors
Windows and window locks
Plumbing in boundary walls and under the floor
Water damage coming from common property

Owner

Changes you made to the ceiling
Internal walls
Carpet in your property
Internal painting or wallpapering
Lights that protrude or hang into your property
Window cleaning, unless you can't access it (for example, if it is too high)
Plumbing in internal walls and fixtures (such as baths, toilets, sinks and showers)
Water damage coming from inside your property

How to get repairs done

If you see common property that needs repair, tell your strata manager or strata committee.

You can also contact them if you think they need to make a repair in your property. They will get the repair done, or tell you if you must do it yourself.

If you are a renter, contact your landlord.

If major repairs are needed, the owners corporation may have to meet to decide what to do. This may include a '**special levy (https://www.nsw.gov.au/housing-and-construction/strata/serving-on-a-committee/finances-insurance#special-levies)**' to cover the cost of the work.

Emergency repairs

Owners

For an emergency repair, contact your strata manager, building manager or strata committee secretary. An example is if a burst water main floods your property.

Sometimes, you may call an emergency tradesperson. You might do this if it is outside business hours (or you can't reach the strata manager, building manager or secretary on the strata committee). Then you can ask to get the money back from the owners corporation.

To get your money back, you might need to show it was right for you to call the tradesperson. Ask the tradesperson to give you written details explaining the problem and what was done to fix it.

Some strata managers have a list of emergency tradespeople you can use on their website.

Tenants

For any repairs, you should contact your real estate agent or landlord. They can arrange the repair for you.

If it is outside business hours (or you are unable to reach them), check your agreement to see what repairs are judged as an 'urgent repair' and if the agreement lists any nominated repairers.

You may be able to call an emergency tradesperson and recover the money from your landlord.

For more information, visit the Fair Trading **webpage on tenancy repairs and maintenance (https://www.fairtrading.nsw.gov.au/housing-and-property/renting/during-a-tenancy/repairs,-maintenance-and-damage)**.

Is your tradesperson licensed?

Do you need to have repairs or maintenance done to your building? If you're using a building contractor or tradesperson you should check that they have a **valid contractor licence (https://www.service.nsw.gov.au/transaction/check-builder-or-tradesperson-licence)**.

What if the repair isn't fixed?

If the owners corporation does not make a repair, you can submit a 'motion' to ask for it. This will go on the agenda of the next owners corporation meeting.

A 'motion' is a request to discuss something at a meeting. Learn how to submit a motion in **strata meetings (https://www.nsw.gov.au/housing-and-construction/strata/living/meetings)**.

If the owners corporation refuses to make a repair, consider asking for **mediation (https://www.fairtrading.nsw.gov.au/help-centre/online-tools/apply-for-strata-mediation)** offered by NSW Fair Trading. Mediation is a free service. It helps solve disagreements between owners and the owners corporation.

Major repairs and defects

It is the job of the owners corporation to plan for repairs and maintenance.

It must put aside money into a 'capital works fund' (previously called a 'sinking fund'). This makes sure major repairs can be paid for. The money in the fund comes from strata levies.

The owners corporation must also make a 10-year **capital works plan (https://www.nsw.gov.au/housing-and-construction/strata/serving-on-a-committee/repairs-capital-works)**. The plan predicts what major repairs might be needed. It also forecasts their costs.

Check the records from your last annual general meeting (AGM) or ask the secretary or strata manager for a copy of the 10-year plan if you don't have one.

Read more about **managing new and older building defects (https://www.nsw.gov.au/housing-and-construction/strata/serving-on-a-committee/repairs-capital-works#toc-managing-defects)**.

Does your building have a NABERS rating?

NABERS can help owners of residential strata buildings understand the energy and water efficiency of their building's common property and find areas for improvement. Find out more visit the **NABERS website (https://www.nabers.gov.au/ratings)**.

Sustainable strata upgrades

Investing in sustainable energy and water infrastructure can benefit a scheme. This includes cost savings and benefits for the environment.

Small actions can reduce common property energy use by 30-40% and water use by 20-25%.

What is sustainability infrastructure?

Sustainability infrastructure is any change to common property that:

- reduces or improves energy or water consumption
- reduces or stops pollution
- reduces the amount of rubbish sent to landfill
- increases the amount of recycling
- reduces greenhouse gas emissions
- encourages sustainable transport (such as electric vehicle charging stations).

How to find out about sustainability upgrades

Find out about sustainability upgrades:

- Check with your local council about any options.
- Check with your water company about any options.
- Contact your electricity company. Check if they qualify for the NSW Government's Commercial Lighting or Home Energy Efficiency Retrofits methods.
- Hire a strata sustainability consultant. They can tell you what other strata schemes have done.

How to make sustainability upgrades

If you want to make sustainability upgrades, it is best to research upgrades and talk about them with others your scheme. This will help you to create a well-formed proposal.

Your proposal should consider costs (including running and maintenance), how it will be installed, and how many owners will benefit from it.

You can put forward a motion for your proposal at the next **strata meeting (https://www.nsw.gov.au/housing-and-construction/strata/living/meetings)**. Sustainability upgrades are voted on through a 'sustainability infrastructure resolution'.

Owners will vote on:

- how to pay for the upgrade
- how to change existing infrastructure or install new infrastructure
- changing the by-laws so residents can use the upgrade.

A majority vote is required for the sustainability infrastructure resolution to pass.

Need more help?

Contact Fair Trading

If you have any further questions about strata, you can contact Fair Trading via phone or in-person at a Service NSW centre.

Phone:**13 32 20 (https://www.nsw.gov.au/tel:13 32 20)**8:30am to 5pm, Monday-Friday

In person:**Find your nearest Service NSW Centre (https://www.service.nsw.gov.au/service-centre)**

Related information

Popular pages

Disputes and complaints (https://www.nsw.gov.au/housing-and-construction/strata/disputes)

Learn how disputes between owners, or residents, or complaints against strata managers and other workers can be resolved.

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Repairs and capital works (https://www.nsw.gov.au/housing-and-construction/strata/serving-on-a-committee/repairs-capital-works)

Minor repairs can generally be managed by the strata manager or strata committee. Major or unplanned repairs may need a meeting to get an agreement on what to do.

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Managing strata finances and insurance (https://www.nsw.gov.au/housing-and-construction/strata/serving-on-a-committee/finances-insurance)

Understand how to set budgets and levies, the different funds and insurance, and what to do if something goes wrong.

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Strata levies, finances and insurance (https://www.nsw.gov.au/housing-and-construction/strata/living/levies-finances-insurance)

Strata schemes must follow rules about how they manage finances. These include rules about levies, funds and planning for the future.

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Helpful links

- **Resolving rental problems → (https://www.fairtrading.nsw.gov.au/housing-and-property/renting/resolving-rental-problems)**
- **How to know who my strata manager is? → (https://www.nsw.gov.au/housing-and-construction/strata/roles#toc-strata-managers)**
- **Difference between strata manager, building manager, and property manager → (https://www.nsw.gov.au/housing-and-construction/strata/roles#toc-difference-between-a-strata-manager-building-manager-and-property-manager)**
- **How do I contact the strata committee? → (https://www.nsw.gov.au/housing-and-construction/strata/roles#toc-strata-committee)**

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